THE REPUBLIC OF UGANDA

IN THE HIGH COURT OF UGANDA AT KAMPALA

(LAND DIVISION)

MISCELLANEOUS APPLICATION NO_____ OF 2025

(MISCELLANEOUS APPLICATION NO. 01 OF 2025)

(ARISING FROM CIVIL SUIT NO. 42 OF 2024)

ARTHUR WOODS ::: APPLICANT

VERSUS

SHADOW RYANS ::: RESPONDENT

<u>NOTICE OF MOTION</u>

<u>(Under Section 37 of the Judicature Act, Cap. 16, Sections 64 & 98 of the Civil Procedure Act Cap 282, Order 521 Rules 1,2 & 3 of the Civil Procedure Rules S.I No. 71-1</u>

TAKE NOTICE that this Honourable Court shall be moved on the_____ day of_____ 2025 at _____ O'clock in the fore/afternoon or soon thereafter as counsel for the Applicant can be heard on the application for orders that;

a) The Respondent be held in contempt of Court Orders issued by this Court in HCMA No. 01 of 2025.

b) A warrant of arrest and or committal to civil prison be issued and enforced against the respondent for disobedience of lawful orders as the Honorable Court may deem fit in the circumstances.

c) An order directing the Respondent to pay the Applicant damages and compensation to the tune of **Ugx. 500,000,000/= (Five Hundred Million Uganda Shillings only)** in order to purge the contempt.

d) An order directing the Respondents jointly and/or severally to pay a fine that court deems fit to purge the contempt.

e) Costs of this application be provided for.

TAKE FURTHER NOTICE that the grounds of this application are contained in the affidavit of **FESTO KYOHEIRWE**, the applicant herein, which shall be read and relied upon at the hearing, but briefly they are that;

1. That the applicant filed Misc. Application N0. 01 of 2024 seeking for a temporary injunction order against the respondent, agents and nominees and assignees restraining them from evicting, selling, transferring, registering or doing anything detrimental to the applicant's interest on the suit land.
2. On the 12th day of January 2025, this honorable court granted the said temporary injunction application pending determination of the main suit.
3. That with deliberate disregard of the court order, the respondent entered on the suit land and is erecting a building thereon.
4. The actions of the respondents' amount to contempt of court since they defied the temporary injunction order issued by court.

DATED at **KAMPALA** this_____ day of _____2025

_____

COUNSEL FOR THE APPLICANT

GIVEN under my hand and seal of this Honorable Court this _____day of_____ 2025.

_____

REGISTRAR

Drawn & filed by:
HUNTER ADVOCATES

THE REPUBLIC OF UGANDA
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VERSUS

SHADOW RYANS ::
RESPONDENT

AFFIDAVIT IN SUPPORT

I, **Arthur Woods** ***C/o M/s R & M Solicitors & Advocates, Shree Ganesh Plaza, Level 2 Suite 10, Plot 22/24 Entebbe Road, P. O. Box 422 Kampala*** do hereby make oath and state as follows;

1. **THAT** I am a male adult Ugandan of sound mind the applicant herein hence capacity to depose this affidavit.
2. **THAT** I am the registered proprietor of land comprised in Kyadondo Block 178 Plot 1466 land at Manyangwa, having purchased the same from Paul Francis Sebwana. ***(Copies of the certificate of title of title and sale agreement are herewith attached and marked annexure "A")***
3. **THAT** I filed Misc. Application N0. 01 of 2024 seeking for a temporary injunction order against the respondent, his agents and nominees and assignees restraining them from evicting, selling, transferring, registering or doing anything detrimental to my interest on the suit land.
4. **THAT** on the 12th day of January 2025, this honorable court, in the presence of the parties and their respective counsel, granted the said temporary injunction application pending determination of the main suit. ***(A copy of the order is herewith attached and marked annexure "B")***
5. **THAT** in deliberate disregard of the court order, the respondent entered on the suit land and is erecting a building thereon. (Photographs showing the construction works is herewith attached and marked annexure "C")
5. **THAT** the actions of the respondents' amount to contempt of court since they defied the temporary injunction order issued by court.
6. **THAT** I swear this affidavit in support of an application for orders that the Respondent be held in contempt of court.
7. **THAT** it is just, fair and equitable that this application be granted.

SWORN at **KAMPALA**
by the said **ARTHUR WOODS}**
this _____day of_____2025} _____

DEPONENT

BEFORE ME

_____

A COMMISSIONER FOR OATHS

Drawn & Filed by:

HUNTER ADVOCATES